SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Tentative Ruling

2023CUBC015044: MARILU ARROYO, et al. vs FORD MOTOR COMPANY, et al.
07/01/2026 in Department 44
Motion for Attorney Fees/Costs

Department Rules. Parties and counsel shall follow the Department 44 rules and Zoom protocols, available at https://www2.ventura.courts.ca.gov/Courtroom/C44.

Remote Appearances. The Court allows Zoom appearances as a courtesy to parties and counsel. The Court does not accommodate Court Call appearances. **You MUST register by 4:00 p.m. the court day before your hearing or you will be DENIED entry to the hearing:**

ZOOM Registration Link:

https://ventura-courts-ca.zoom.us/meeting/register/iqN7uhQSQMuOqs-9TQXgEQ

No advance notice is required to appear in person.

Tentative Rulings. Oral argument should address the tentative decision. To submit on the tentative decision, email courtroom44@ventura.courts.ca.gov before 8:00 a.m. on the hearing date, copying all other parties, Use the subject line "SUBMISSION ON TENTATIVE", [Case Number], [Case Title] and [Party]. If not all parties submit, the hearing will proceed, and the tentative ruling may change.

The Court may adopt, modify or reject the tentative ruling after hearing. The tentative ruling has no legal effect unless and until adopted by the Court.

Motion: Plaintiffs' Motion for Attorneys' Fees, Costs, and Expenses

Tentative Ruling:

Plaintiff's Motion for attorneys fees is GRANTED in the reduced amount of $21,1117. Plaintiffs requests for costs is DENIED without prejudice.

Plaintiffs request for judicial notice of rulings in other cases in California state trial courts and unpublished federal district courts throughout the State of California is DENIED. None of the opinions are relevant for purposes of determining the prevailing hourly attorney billable rates in the County of Ventura.

Plaintiffs objections to the Declaration of William Migler are OVERRULED.

I. Background

Plaintiffs, Marilu Arroyo and Miguel Arroyo ("Plaintiffs"), are the prevailing parties in a Lemon Law action arising out of their purchase of a certified pre-owned 2019 Ford F-150.

The lawsuit was filed on October 6, 2023, against manufacturer, Ford Motor Company ("Ford"), and the dealer, Envision Ford ("Envision" collectively "Defendants"). The Complaint in this action is a template document well-known to this Court and filed hundreds, if not thousands of times by Plaintiffs' attorneys, Strategic Legal Practices ("SLP").

Defendants demurred to the negligence repair cause of action, which was the only cause of action asserted against Envision and the fraud cause of action asserted against Ford. Plaintiffs opposed the demurrer, the Court overruled as to Ford and sustained with leave to amend as to Envision. Plaintiffs failed to amend their complaint as to the negligence cause of action, and the Court dismissed Envision from the lawsuit with prejudice on June 5, 2024. Thereafter, during the course of the litigation, Defendant filed three motions to compel discovery, which were granted on August 7, 2024, and on March 4, 2025 with an award of sanctions payable by Plaintiffs in connection with the March 4, 2025 motions.

On September 18, 2025, the Court granted Ford's *unopposed* motion for summary for summary adjudication. At the hearing, which took place at 9:15 a.m., the Court confirmed that Plaintiffs received proper notice of the MSA but elected not to file an opposition. SLP attorney, Rabiya Tirmizi, represented to the Court "that plaintiffs began preparing an opposition yesterday" after the Court denied Plaintiffs' ex parte application to continue the MSA hearing. The Court granted Defendants' MSA, which disposed of the fifth cause of action for fraud, and seventh cause of action for violation of the Magnason-Moss Warranty Act. (Min. Order Sept. 18, 2025) Later that day, *after* the Court ruled on the MSA, Plaintiffs filed an opposition to the MSA with the Court.

The matter settled for $88,699.00, which Plaintiffs characterize as an "excellent" result, and was the amount offered by Defendant pursuant to a Code of Civil Procedure section 998 offer, served on Plaintiffs on October 2, 2025. Plaintiffs accepted the 998 offer on October 10, 2025, four days before the date scheduled for trial, October 14, 2025.

Plaintiffs seek a lodestar attorney fee award of $52,792.50 before application of a requested 1.35 multiplier enhancement of $18,456.32, as well as an additional $4,000 incurred connection with the preparation of this motion for a total fee award of $75,248.82. SLP also seeks costs in the amount of costs in the amount of $6,186.44. In total, Plaintiffs request $81,456.32 in attorney fees, costs, and expenses under Civil Code section 1794, subdivision (d).

Plaintiffs support their request for fees with the declaration of Dhara Chandy, in which Ms. Chandy outlines the history of this litigation, which was filed October 6, 2023, and on which 18 attorneys and 3 law clerks billed 110.3 hours. Plaintiffs assert that although 22 timekeepers billed time to the file, 5 attorneys and 1 law clerk account for approximately 60 percent of the time billed. Ms. Chandy outlines the history of the litigation as well as the education, years of experience, and hourly rate of the timekeepers in her declaration. SLP seeks an hourly rate of $325-$345 for unlicensed law clerks, and rates ranging from $375 to $695 per hour for the licensed timekeepers. Ms. Chandy attaches itemized billing records for this case to her declaration.

Defendants argue that the rates charged by SLP are excessive and the attorneys billed excessive amounts for cookie-cutter and unnecessary work. In particular, Defendants point to examples of excessively billed or unnecessary work performed by SLP attorneys, e.g., time billed for Plaintiffs preparation of an opposition to the MSA (35.6 hours), 1.5 hours billed for "drafting" a protective order that was prepared by Ford, excessive time spend for preparing discovery requests and preparing draft responses to discovery, excessive time spend preparing for and attending remote hearings, preparation of trial documents that were prepared after Defendant served the offer of compromise. (Migler Decl., ¶ 6, Exh. E.) In total, Defendants seek to adjust the rates of SLP attorneys and other timekeepers downward to a range of $235 to $350 per hour. In addition, Defendant seeks a further reduction of the hours billed from 110.3 to 28.53 for a reduced fee award in the amount of $7,497. (Migler Decl., ¶ 6, Exh. F.)

II. Legal Standard: Attorney Fees and Costs in Song-Beverly Actions

"If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action." (Code Civ. Proc., § 1794, subd. (d).)

"A prevailing buyer has the burden of showing that the fees incurred were allowable, were reasonably necessary to the conduct of the litigation, and were 'reasonable in amount." (*Nightingale v. Hyundai Motor America* (1994) 31 Cal.App.4th 99, 104 [quoting *Levy v. Toyota Motor Sales, U.S.A., Inc.* (1992) 4 Cal.App.4th 807, 816 (internal quotation marks omitted)].)

"The reasonable hourly rate is that prevailing in the community for similar work." (*Pulliam v. HNL Automotive Inc.* (2021) 60 Cal.App.5th 396, 406 [quoting *PLCM Group, Inc. v. Drexler* (2000) 22 Cal.4th 1084, 1095].)

"Courts apply the lodestar method in calculating attorney fees." (*Pulliam*, *supra*, 60 Cal.App.5th at p. 406.) The court may award fees in a lesser amount if, after considering all the circumstances, it finds that the time expended or monetary charge being made for time expended is not reasonable. (*Nightingale*, *supra*, 31 Cal.App.4th at p. 104.)

"Costs and expenses" outside of those allowable under Code of Civil Procedure section 1033.5 may be allowed under Civil Code section 1794, subdivision (d), so long as they were reasonably necessary to the conduct of the litigation and were reasonable in amount. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42-43; see also *Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138, disapproved on other grounds in *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 204-205; *Hanna v. Mercedes-Benz USA, LLC* (2019) 36 Cal.App.5th 493, 506-507.)

III. Application

A. Attorney Fees

The Court has independently reviewed the evidence submitted in support of and in opposition to Plaintiffs' motion. The Court declines to engage in an exhaustive line-by-line analysis and discussion. Such a review is neither required nor practical. The Court concludes that Plaintiffs have overstaffed this straightforward Lemon Law case, and seek compensation based on excessive time expenditures, excessive block-billing, vague descriptions, and excessive hourly rates not reasonable for the community.

For example, SLP attorney Ms. Tirmizi represented to this Court on September 18, 2025, the date of the MSA hearing, that Plaintiffs elected not to timely file an opposition and had only begun work on the opposition the day before the MSA hearing. Yet, Plaintiffs billing records reflect multiple time entries associated with the preparation of the MSA opposition between August 15, 2025 through the date of the hearing on September 18, 2025, totaling 35.6 hours. Curiously, Plaintiffs then filed the opposition to the MSA *after* the motion had already been decided. Plaintiffs also seek to recover attorney fees associated with their unsuccessful oppositions to Defendants motions to compel discovery, and in connection with same, Plaintiffs were ordered to pay monetary sanctions to Defendants. All of the hearings attended by the attorneys in this case were attended remotely, and all of the issues that arose in this case are repeatedly litigated in thousands of other cases prosecuted by SLP, yet SLP attorneys (and law clerks) continue to bill hours for preparation of routine and templated documents that this Court has seen repeatedly, often times with remnants of facts from prior cases left in. In this case, for example, the Declaration of Dhara Chandy clearly is meant to outline her education and experience in paragraph E at page 11, but alternately refers to Ms. Chandy and a Ms. Patel. (Chandy Decl., p. 11, ¶ E.) The Court recognizes that a firm specializing in a particular area is entitled to charge for their expertise, and to some extent SLP is entitled to do so. However, the amounts billed here are excessive. And, under the circumstances, the Court has little confidence that it can rely on the billing records and time entries presented. In addition, the Court finds that the rate charged by SLP attorneys are excessive for the prevailing rates in the Ventura County community for similar work.

In light of the numerous instances of excessive and unnecessary time expenditures, block billing, and vague descriptions, and excessive hourly rates, the Court exercises its discretion to reduce the claimed hours sought with a 60 percent reduction of Plaintiffs lodestar figure. (*Kerkeles v. City of San Jose* (2015) 243 Cal.App.4th 88, 102 [courts may make "across-the-board percentage cuts either in the number of hours claimed or in the final lodestar figure" when a voluminous fee application is made]; *Snoeck v. ExakTime Innovations, Inc.* (2023) 96 Cal.App.5th 908, 929 [affirming twenty-percent reduction based on overstaffing, excessive and vague billing, duplicative work, and degree of success].)

The Court declines to apply a multiplier. Even though this case was litigated over the course of two and a half years and settled after trial documents were prepared, it was still routine. There was some routine law and motion in this case, but some of that law and motion was necessitated by Plaintiffs' failure to provide discovery responses and records at Plaintiffs' depositions, and some of the work that would have been reasonable for Plaintiffs to perform, i.e., oppose Defendant's MSA, but Plaintiffs failed to perform the work in a timely matter, and instead performed the work and filed the motion *after* the Court decided the motion.

The total fee award is $21,1117.

B. Costs

Plaintiffs seek $6,186.44 in costs, but have failed to file a memorandum of costs in support of their request, which is required. (*Murillo v. Fleetwood Enterprises*, *Inc*. (1998) 17 Cal.4th 985, 1000; see also Cal. R. Ct., rule 3.1700(a)(1).) On the information presented, the Court cannot determine whether the claimed costs were reasonably necessary to the conduct of the litigation. Accordingly, Plaintiffs requests for costs is DENIED without prejudice.